D 144 | Terms before a fund

PRIVATE FICTIONAL offline paper design. Crore rupees. No formation, solicitation, investment advice, signature, account, capital call, fee or commitment.

Separate entities	Map investors -> actual Indian vehicle -> portfolio. Distinguish sponsor, manager, trustee where relevant, custodian and decision bodies. A US GP/LP example does not establish Indian legal form, tax, liability limits or ring-fencing. No actual vehicle selected.
Four numeric families	Voluntary sponsor 5% of corpus 400 = 20. Separate stipulated ordinary formula min(2.5%*400, 5)=5, not case-specific legal clearance. Fee toy 2%*400 in each year 1-4 = 8/year; year 5 1.5%*250 = 3.75; five-year total 35.75, not lifetime total.
Separate waterfall	400 contributed, 650 cash distributable AFTER ALL costs. Capital returned first; 20% of profit 250 = carry 50; capital-provider pool 600. No hurdle, catch-up, recycling, tax, clawback, dated IRR or investor-specific split. Do not deduct 35.75 again from already-net 650.
Capital is not all day one	Separate call schedule 25%, 30%, 20%, 25% of 400 gives 100, 120, 80, 100. Sponsor voluntary 20 contributes 5, 6, 4, 5 under identical classroom allocation. Remaining 380 providers pay 95, 114, 76, 95. Not actual notices or proof of compliance with pro-rata continuing-interest rules.
Read, do not universalize	Selected SEBI provisions read with applicability exceptions; general 10(d) not universal for angel/co-investment/migrated funds. Custodian current 20(11)/master 17.2 differs from historical>500 crore footnote. Master 17.6.1 is pro-rata interest, not full corpus due dayone.
Actual evidence remains blank	Eight negotiated term rows are authored comparisons, not signed terms or investor intent. Static prose describes baseline only. No current legal/tax opinion, full-source/AV/native cross-viewer/independent learner/account/field/overall 10 clearance.

Inputs | Stipulated arithmetic only

All money crore rupees, rates fractions. Independent gates, no real fund eligibility determination.

Corpus including voluntary sponsor commitment	400.000000
Voluntary sponsor fraction	0.050000
STIPULATED ordinary percentage, not applicability	0.025000
STIPULATED ordinary cap, crore	5.000000

Separate fee base years1-4, committed	400.000000
Annual fee fraction years1-4	0.020000
Separate year5 remaining invested cost base	250.000000
Annual year5 fee fraction	0.015000

Separate capital contributed to waterfall	400.000000
Separate AFTER-ALL-COST distributable cash	650.000000
Carry fraction above return of capital	0.200000

Commitment numeric gate	1.000000
Fee numeric gate	1.000000
Waterfall numeric gate	1.000000

Numeric gates are not legal, commercial or consent tests. Zero capital leaves a distribution multiple undefined. Fee bases are independent of corpus and waterfall; edits do not automatically reconcile these separate cases. No fees/interest/taxes invented.

Commitment | Voluntary is not the legal minimum

Crore rupees except labeled rates/fractions. Synthetic conditions, not automatic rights.

Voluntary sponsor commitment	20.000000
Separate stipulated percentage amount	10.000000
Separate stipulated lower-of result	5.000000
Voluntary minus stipulated amount, not compliance	15.000000
Other capital providers in voluntary toy	380.000000

Baseline voluntary 20, percentage 10, lower-of 5, difference 15, other providers 380. Difference is not a legal surplus/deficiency finding. Formula only reproduces the stipulated ordinary classroom rule; category/subcategory/scheme, amendments, transition and other legal requirements remain unresolved. At zero corpus, this arithmetic may show zero but does not establish eligibility.

Fees | Rate, base and period

Crore rupees except labeled rates/fractions. Synthetic conditions, not automatic rights.

Year1 fee	8.000000
Year2 fee	8.000000
Year3 fee	8.000000
Year4 fee	8.000000
Year5 fee, changed base AND rate	3.750000
Five-year aggregate, not full-life fees	35.750000
Year5 less year4 fee	-4.250000

Baseline 8, 8, 8, 8, 3.75, total 35.75, change-4.25. Annual whole periods only, no offsets, taxes, interim base changes, fee holidays, later years or proration. Fees do not guarantee performance. ILPA selected model specifies quarterly advance and offset carryforward; this simpler toy does NOT implement that model.

Waterfall | One whole-fund endpoint

Crore rupees except labeled rates/fractions. Synthetic conditions, not automatic rights.

Capital returned first	400.000000
Positive residual profit	250.000000
Manager carry on residual only	50.000000
Capital-provider residual profit	200.000000
Total to capital-provider pool	600.000000
Undistributed reconciliation, must be zero	0.000000
Capital shortfall, not negative carry	0.000000
Provider distribution / contributed	1.500000

Baseline capital 400, profit 250, carry 50, provider profit 200, provider total 600, reconciliation 0, shortfall 0, multiple 1.5. At distributable 300, capital return 300, shortfall 100, carry 0, provider 300. Sponsor included in capital-provider pool if contributing, but no separate allocation calculated. No dated net IRR, preferred return, catch-up, deal-by-deal carry, escrow or clawback. Cash 650 already after ALL costs, no fee double-count.

Calls | A separate staged funding toy

Fractions of full 400 corpus including voluntary sponsor 20. Same fractions for every provider, no excuse/default/recycling/fees separately modeled. Not actual call notices.

Call	Fraction INPUT	All providers	Sponsor voluntary	Other providers	Cumulative all
1	0.250000	100.000000	5.000000	95.000000	100.000000
2	0.300000	120.000000	6.000000	114.000000	220.000000
3	0.200000	80.000000	4.000000	76.000000	300.000000
4	0.250000	100.000000	5.000000	95.000000	400.000000

Gate	1.000000

Uncalled all-provider commitment	0.000000
Total called sponsor voluntary	20.000000
Uncalled sponsor voluntary	0.000000

Baseline calls 100, 120, 80, 100; sponsor 5, 6, 4, 5; other 95, 114, 76, 95. Sum of call fractions MAY be less than 1: uncalled balance is not a default. Above 1, text/blank/negative entries invalidate this toy. Contract controls who owes what, due date, notice, excuse, default and relief. No actual fund or transfer.

Roles | Map authority separately from cash

Authored map prompts. No actual legal vehicle, strategy, classification or governing documents selected.

Investors -> vehicle	Show commitment versus called cash versus units/interests. Private corpus 400 is not 400 invested on dayone. Identify sponsor contribution included in corpus, not added again. A voluntary percentage does not establish the applicable legal minimum.
Vehicle -> portfolio	Investment authority follows actual constitutive documents and applicable law. Separate beneficial ownership, safekeeping and advice from investment decisions. A custodian does not automatically manage the portfolio or guarantee asset values.
Sponsor and manager	Identify actual legal persons and their contractual functions. Manager service fees differ from sponsor invested capital and carry allocation. Do not assert every GP principal is personally unlimited-liable; entity form, governing law and exceptions matter.
Trustee and committees	If using a trust, identify trustee and duties rather than relabeling it a US GP/LP fund. LPAC/IC powers require precise delegated scope, conflicts and voting rules; advisory oversight is not automatic control of all investments.
Indian applicability	SEBI selected general 10(d), angel 19 B/19 G, migrated 19 W and co-investment applicability exceptions require full case mapping. Master 17.2 appointment before scheme first investment, 17.6.1 pro-rata interest refer different matters. Historical footnotes are not operative rules.
Delayed transfer	Close notes: increase year 5 cost base 300 -> fee 4.5. Distributable 300 -> carry 0/provider 300/shortfall 100. Call fractions total.75 ->100 uncalled on 400, not default. Voluntary 2% ->8, stipulated ordinary result still 5; none proves compliance. Actual learner responses blank.

Terms 1 | Economics and investment period

Manager and hypothetical capital-provider preferences are authored comparisons. Actual scope, electorate, exclusions, deadlines and legal advice remain to be supplied.

1 Fees and offsets	Manager: operating budget and predictable base. Provider: stated rate/base/step-down, expense caps, defined portfolio-fee offsets and carryforward. Specify holidays, proration, extension fees, tax and fee-paying classes; no automatic 2% norm.
2 Carry and clawback	Manager: timely realization of agreed carry. Provider: exact whole-fund priorities, hurdle/catch-up if negotiated, escrow/guarantors, interim/final clawback triggers and tax treatment. Do not use the simple endpoint toy as a signed multi-period waterfall.
3 Key person	Name people and time/ownership/departure triggers; immediate notice, suspension scope, permitted expenses/committed follow-ons, decision body, vote basis, replacement/remediation deadline and consequence of no approval. Neither all operations cease nor liquidation follows automatically.
4 Investment period	Manager: room for new opportunities. Provider: fixed start/end and successor-fund effects; define follow-ons, reserves, binding commitments and recycling exceptions. Separate commitment period from fund life and from notice dates.

Terms 2 | Extensions, removal and exceptions

Manager and hypothetical capital-provider preferences are authored comparisons. Actual scope, electorate, exclusions, deadlines and legal advice remain to be supplied.

5 Extensions	Manager: time to realize assets. Provider: number/length of extensions, asset wind-down plan, electorate and threshold, notice, conflicts, fees and consequences if consent fails. 8+2 label alone does not grant a unilateral extension or guarantee returns.
6 Removal / cause	Separate for-cause and without-cause triggers; findings, notice/cure and appeals where agreed. Define excluded votes, interests versus headcount, interim powers, successor transition and compensation. No automatic 66.6/75 rule adopted from a vendor example.
7 MFN / conflicts	Define eligible investors/terms, commitment thresholds, excluded regulatory/tax/fee terms, election window, required notices and conflicts/allocation process. Vendor dollar-weighted sentence uses direction that requires checking against actual clause; no unrestricted right to every side-letter term.
8 Excuse / default	Define qualifying excuse evidence, decision authority, reallocation and economic impact. Separately state notice/cure for unpaid valid calls, lawful penalties, hardship relief and transfer mechanics. Uncalled commitment or authorized excuse is not a default; no actual demand or punitive action.

Actual plan | Five rows remain blank

No accepted vehicle, investor preferences, counsel opinion, signed term sheet, authority or capital commitment.

Question / entity	Source / cutoff	Actual clause / law	Observed / toy	Owner / acceptance	Permission / budget	Stop / delayed transfer

Fill only with real evidence if authorized. Paper terms do not authorize formation, marketing, disclosure, subscription, fees, bank accounts, advisory services or commitments. No full-source/AV/native cross-viewer/independent learner/legal/tax/overall 10 clearance.

Evidence | Source boundaries and disagreements

Six URLs, four organizations. Selected legal text, vendor exposition, model and professional commentary, not six independent outcome studies.

SEBI consolidated	https://www.sebi.gov.in/sebi_data/attachdocs/oct-2026/1792668513871.pdf | PDF selected 10(d), 19 B/19 G, 19 W, 20(11) and co-investment applicability read. Fetch returned only opening through 11; downloaded PDF needed for selected later clauses. Not full regulations/current case-specific legal/tax assessment or implementation.
SEBI master	https://www.sebi.gov.in/sebi_data/attachdocs/nov-2026/1793875212889.pdf | Issued June 3 / updated November 5, 2026. Selected 17.2.1-.2 and 17.6.1-.3 read from downloaded PDF. Custodian appointment before first scheme investment differs from pro-rata continuing interest. No full 156 page circular or every linked condition read.
Carta LPA	https://carta.com/learn/private-funds/structures/limited-partner/lpa/ | Complete returned written June 25, 2026 page read. US/general fund terms, not Indian law. Survey/market numbers not independently tested. General liability/carry wording simplified; MFN threshold direction must follow actual clause. No image/video/linked reports or current investor preference verification.
ILPA index/model	https://ilpa.org/industry-guidance/templates-standards-model-documents/ and https://ilpa.org/wp-content/uploads/2020/07/ILPA-Model-Limited-Partnership-Agreement-WOF.pdf | Complete returned index; July 2020 model selected 6.1-6.2, 8.3-8.4.1, 11.1-11.5 read. Buyout drafting starting point, not law or full agreement review. Actual call/fee/offset/keyperson mechanics exceed this toy.
Taxmann commentary	https://www.taxmann.com/post/blog/aif-fee-structure-hurdle-rate-high-water-mark-distribution-waterfall | Selected written introduction, sections 1-5.1 read, not complete article or linked NISM book. Market rates/legal assertions not independently adopted. Its general only-liquidation performance-pay statement cannot override deal-by-deal negotiated mechanics. No actual market benchmark or advice.
Conflicts and limits	Carta usual quarterly advance vs commentary arrears/GNAV wording reflects different contexts, not a universal timing rule. Toy uses annual whole-period fees. ILPA offset carryforward omitted, not assumed zero. Liability guarantees, automatic rights, tax superiority and higher sponsor commitment as performance proof rejected. No AV, pixel-source diagrams, native Excel/Sheets parity, learner or overall 10.

Failure log | Authored tests, not fund diligence

Populated only after formula execution. No investor mistakes, independent review, legal approval or actual fund performance.

1	PASS: 43 baseline formulas independently recomputed.
2	PASS: 24 changed sets plus restore.
3	PASS: 24 invalid inputs/1032 independent isolation checks.
4	PASS: 6 broken references/6 explicit checks.
5	PASS: numeric families independent; no legal applicability test.
6	PASS: loss case zero carry; zero-capital multiple undefined.
7	PASS: uncalled partial schedule not treated as default.
8	PASS: actual evidence/permissions/owner/stop plan blank.